

the object for which the trust was created. In case the trustee neglected his duty, the *cestui que trust* was entitled to file a bill in Chancery, and compel him to proceed in the execution of his office (a).

Trusts applicable to chattels.—Both the *simple trust* and the *special trust* were applicable to *chattels* real and personal, as well as to freeholds; but trusts of chattels were for obvious reasons much less frequently employed. The amount of the property was small; the owner, even without the interposition of a trustee, had the fullest control and dominion over it; and a chattel interest, as it followed the person, was equally subject to forfeiture whether in the custody of a trustee, or in the hands of the beneficial proprietor (b). But to the extent, whatever it was, to which trusts of chattels were adopted, they were administered upon the same principles, *mutatis mutandis*, as were trusts of freeholds; the right to sue a *subpœna* turned equally on privity (c), and the interest of the *cestui que trust* was held not to be assignable (d).

Statutes affecting trusts.—Such was the nature of trusts as they stood at *common law*; but the manifold frauds and mischiefs to which the new system gave occasion, particularly “the great unsurety and trouble arising thereby to purchasers,” called loudly from time to time for the enactment of remedial statutes. One of the most important of these was 1 Ric. 3, c. 1, the substance of which may be well expressed in the terms of the preamble, viz., that “all acts made by or against a *cestui que use*, should be good as against him, his heirs, and feoffees in trust,” in other words, that all dealings of the *cestui que use* with the trust property [*5] should have precisely * the same legal operation, as if the *cestui que use* had himself possessed the legal ownership. To what interests the legislature intended this statute to apply has not on all hands been agreed. A feoffment in *fee* to uses was clearly the case primarily intended. Upon a feoffment in *tail*, it seems no use could have been

(a) See the case in the reign of Hen. 7. Append. to Sugden on Powers, No. 1.

(b) 5 H. 5. 3, 6.

(c) Witham's case, 4 Inst. 87.

(d) Jenk. 244, c. 30.